



POLICE DEPARTMENT

November 12, 2014

MEMORANDUM FOR: Police Commissioner

Re: Sergeant Jamie Young
Tax Registry No. 910393
Patrol Borough Manhattan North
Disciplinary Case No. 2012-8683

The above-named member of the Department appeared before the Court on June 11, July 16, and July 18, 2014, charged with the following:

1. Said Sergeant Jamie Young, while assigned to the School Safety Division Investigations Unit, on or about and between November 28, 2011 and December 20, 2011, did fail and neglect to perform her assigned investigative duties in a satisfactory manner, in that said Sergeant wrongfully prepared and incorporated into official Department files investigative worksheets and other reports for a confidential Department investigation which contained inaccurate or misleading information.

P.G. 203-05, Page 1, Paragraph 4 – PERFORMANCE ON DUTY – GENERAL
GENERAL REGULATIONS

2. Said Sergeant Jamie Young, while assigned to the School Safety Division Investigations Unit, on or about December 4, 2012, while on duty, did engage in conduct prejudicial to the good order, efficiency, or discipline of the Department, in that said Sergeant Young wrongfully impeded an official Department investigation by making misleading or otherwise inaccurate statements during an interview conducted by members of the Internal Affairs Bureau pursuant to Patrol Guide Section 206-13 regarding the preparation and supervisory review of investigative worksheets.

P.G. 203-10, Page 1, Paragraph 5 – PUBLIC CONTACT – PROHIBITED CONDUCT
GENERAL REGULATIONS

The Department was represented by David H. Green and Samuel Yee, Esqs., Department Advocate's Office. Respondent was represented by Andrew C. Quinn, Esq., The Quinn Law Firm, PLLC.

Respondent pleaded Not Guilty to the subject charges. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

RECOMMENDATION

Respondent is found Guilty.

FINDINGS AND ANALYSIS

This case is one that exemplified the overriding disciplinary theme of *Quis custodiet ipsos custodes?*, as the investigator assigned to investigate a member of the service herself became the investigated. The matter began when School Safety Agent Person A was arrested for shoplifting at a Home Depot within the confines of the 75 Precinct in Brooklyn. There was a misunderstanding from the start about the facts of the case. There was video surveillance of the incident as well as the in-person observations of a security guard. The guard observed Person A remove items from a shelf, place them into his bag, and exit the store without paying. The video showed Person A leaving the store with the bag but without paying. The video did not, however, show Person A removing the items from the shelf and placing them in his bag. For some reason, the '49' from the commanding officer of the 75 Precinct (Department's Exhibit [DX] 12) stated that the video *did* show Person A "removing property and leaving the store without paying for it."

Respondent was the assigned investigator on Person A's case from the School Safety Division Investigations Unit (SSDIU). She inherited the case from the previously-assigned investigator, who had retired. There were several worksheets and synopses stating that they were prepared by Respondent. These documents (DX 1-2, 4, 6 & 8) stated that Respondent spoke to the security guard, viewed the video, and spoke to the patrol supervisor that authorized Person A's arrest. All of these reports mentioned that video surveillance showed Person A removing the items from the shelf and putting them in his bag.

In the Department Advocate's Office, the case was assigned to Harry Peters, Esq. Peters reviewed all of the materials, including the video surveillance. He saw that there was an inconsistency in that the video did not show, as the reports purported it did, Person A placing the items in his bag from the store shelf. Peters talked to the security guard from The Home Depot, who told Peters there was no such video footage because there were no cameras in that particular aisle. The guard told Peters that he observed Person A take the items personally.

Upon first meeting with Peters, Respondent told him that she never saw a video showing Person A removing any items from the shelf, and indicated that there was no such video. When Peters asked Respondent to explain the discrepancies, she answered that the only explanation she could think of was that the inaccurate information was written by someone other than her. She said that only her team leader, Lieutenant Christopher McDonald, and her commanding officer Captain Jason Herrell, were likely to have reviewed her work.

Respondent assured Peters that she had copies of her original documents which she claimed were not consistent with the challenged documents. Peters testified that shortly after meeting with Respondent she provided him with two additional documents. One was a worksheet documenting Respondent's receipt of video footage (DX 3). This did not state that

video showed Person A removing merchandise from aisle shelves. The next, DX 5, was a worksheet documenting Respondent's interview of the patrol supervisor. Again, there was no mention of video footage showing Person A removing items from the shelf.

McDonald, by the time of trial the day tour platoon commander at the 20 Precinct, testified that one of his functions was to review Respondent's cases. He described Respondent as very capable overall, but someone that required additional supervision due to issues with case management and putting thoughts into writing. He found Respondent to be lazy in the way that she presented her cases because she sometimes incorporated inaccurate information or was not specific enough, leaving loose ends. McDonald explained that any corrections he made were on hard, paper copies and consisted of grammatical or syntactical errors. He never made corrections on factual statements. In any cases where corrections were made, Respondent would be informed.

Sergeant Hui Chi was the Internal Affairs Bureau (IAB) investigator on Respondent's case. By the time of trial he was assigned to the Management Information Systems Division. Chi conducted an official Department interview of Respondent on December 4, 2012 (DX 10). She denied making any mistakes on her worksheets and suggested that the worksheets might have been changed by her supervisors when they reviewed them.

Chi had the computer hard drives of Respondent, McDonald and Herrell analyzed to test Respondent's assertion that her supervisors might have altered the documents. IAB's forensic analysis showed that the challenged documents were not altered or edited by anyone other than Respondent.

Chi conducted a second official interview with Respondent on May 21, 2013 (DX 11). Now Respondent said that she herself had made the mistakes on the worksheets and the mistakes were not attributable to her supervisors.

At trial, Respondent conceded that one of her initial investigative steps was to read the initial '49' from the 75 Precinct. Respondent nevertheless testified that she had not written the lines in DX 1 and 2 that mentioned a video camera showing Person A placing items into a bag. Respondent admitted that she drafted DX 3 and 5, re-documenting her review of the video and conversation with the patrol supervisor, after her initial conversation with Peters. These new documents reflected the changes that she made to the original reports.

Respondent testified at trial that she believed the sentences in her initial reports were added by someone else. Respondent asserted that she never accused anyone of changing her reports. Rather, she merely suggested the only alternative that she could fathom.

Specification No. 1

The first specification charges that Respondent wrongfully prepared, and incorporated into official Department files, worksheets and other reports that "contained inaccurate or misleading information." The evidence demonstrated that to be so. Although Respondent presented this matter as some kind of profound mystery, in the end it really is not that difficult to decipher what happened. A member of the service was arrested and the local precinct quickly prepared a '49.' The rudimentary facts were there – a shoplifting was caught on video. But the precise facts got jumbled. It came out as implying that Person A was seen on video removing items from the shelf and placing them in his bag, when the video only showed him leaving the store without paying and a human person witnessed him removing and secreting the items.

Respondent, whether she viewed the video at that time or not, cut-and-pasted from the '49' without correcting the original errors and sent them to the Advocate. When the Advocate realized the discrepancy and confronted Respondent, she panicked and lied.

There is no evidence that anyone other than Respondent amended the documents to make them erroneous. McDonald credibly testified that he had no reason to do so. He had no personal knowledge of the underlying facts, so he had no ability to do so. The forensic examination of the relevant SSDIU computers demonstrated that no supervisors changed the wording on the documents.

In any event, Respondent acknowledged in her second official interview that she was responsible for making the changes in the reports and for the discrepancies between the different versions. Respondent disclaimed any responsibility on the part of her supervisors and said that they only checked grammar and word flow. Respondent submitted that she unintentionally included these errors in her original closing report and worksheets. Respondent claimed at trial, however, that she got confused during the interview and therefore never admitted misconduct. In fact, the questions were asked and answered in a straightforward, non-confusing manner on all relevant issues.

Respondent also claimed several times during trial to be confused as well. That confusion seemed to begin, however, only once cross examination commenced. In fact, Respondent's sudden inability to comprehend simple questions on cross – like the meaning of "worksheets" only detracted from her credibility.

As such, the Department proved that Respondent prepared, and incorporated into Department files, the inaccurate documents in question. Therefore she is found Guilty of Specification No. 1.

The second specification charges that Respondent impeded the investigation into the erroneous documents at her first official interview “by making misleading or otherwise inaccurate statements” as to supervision and preparation of the documents. Respondent testified at trial that she did not intend to mislead or make inaccurate statements to IAB during the first interview by suggesting a supervisor was responsible for adding erroneous language to her reports. She asserted that she mentioned supervisory changes merely as one possible answer.

In fact, Respondent directly placed the blame on others during the first interview. She stated that a supervisor might have changed the worksheets. She said, for example, “When we hand in the case, it’s reviewed by several people. So I think someone was perfecting it and maybe they misconstrued what I had written” (DX 10:10). That is, one of her supervisors might have thought that the entire larceny was recorded on video and edited the document. When asked, “Is that what you believe happened here?,” she answered, “Yes, I do” (DX 10:16). Respondent knew that this was not the case because she knew she had prepared the documents herself. Therefore, she gave inaccurate and misleading answers during the interview.

Specification No. 2

Respondent’s inaccurate and misleading answers also impeded the investigation. Chi, the IAB investigator, testified that after Respondent’s first interview, IAB conducted several other interviews. These included Peters the assigned Advocate on Person A’s case, McDonald the SSDIU team leader, the patrol supervisor who responded to Person A’s arrest, and the Home Depot security guard. Even if these interviews would have happened anyway, IAB also had to order the forensic examination on the SSDIU computers. Respondent’s interview statements thus impeded the investigation by causing IAB to take further steps in the investigation that they

otherwise would not have had to take. Cf. Case Nos. 2010-0218 & -0272, pp. 40-41 (Mar. 26, 2012). Respondent therefore is found Guilty of Specification No. 2.

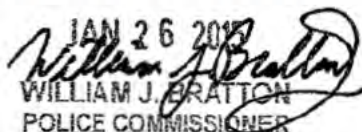
PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See Matter of Pell v. Board of Educ., 34 N.Y.2d 222, 240 (1974). Respondent was appointed to the Department on April 30, 1991. Information from her personnel folder that was considered in making the penalty recommendation is contained in an attached confidential memorandum.

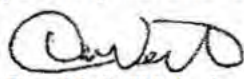
If this case is, as Respondent's counsel suggested, a tempest in a teapot, it is one of Respondent's own making. The Advocate correctly pointed out that if Respondent simply had told Peters she made a proofreading error on the documents, it is exceedingly unlikely this case would have led to disciplinary proceedings. It would have been seen merely as "inartful," the way the Advocate described the local precinct commanding officer's mistake on the seminal '49.'

Impeding an investigation routinely leads to penalties of dismissal probation if not termination. The Department's recommendation of 25 days is thus fair if not merciful. The Court notes that Respondent already has suffered some sanction, as she apparently lost her investigatory position over the incident and has returned to a patrol assignment. Therefore, the Court recommends that Respondent forfeit 25 vacation days as a penalty in this matter.

APPROVED

JAN 26 2012

WILLIAM J. BRATTON
POLICE COMMISSIONER

Respectfully submitted,


David S. Weisel
Assistant Deputy Commissioner – Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
SERGEANT JAMIE YOUNG
TAX REGISTRY NO. 910393
DISCIPLINARY CASE NO. 2012-8683

Respondent's last three annual evaluations were as follows: she received an overall rating of 4.0 "Highly Competent" in 2014, and a 3.0 "Competent" in 2013 and 2012. [REDACTED]
[REDACTED]

[REDACTED]
[REDACTED] She has no prior formal disciplinary record.

For your consideration.

Respectfully submitted,



David S. Weisel
Assistant Deputy Commissioner – Trials